

Disclaimer

Health and Safety Assessment Terms and Conditions:

It is agreed that to enable a thorough inspection and assessment, the Assessor will be allowed open and free access to any sites and any areas within those sites covered by the contract.

It is the responsibility of the Customer to ensure that all relevant personnel are fully aware of the Assessors visit and that the Assessor or others working on behalf of the Assessing Company are not hindered in any way in the carrying out of their duties

The Assessor will use all best endeavours to advise the Customer as to the status, regulations and systems of work appropriate to the Customer's fire risk assessment so as to assist the Customer to fulfil their duties in accordance with such statutes, regulations, standards and such systems of work which may be applicable to the Customers specific industry.

The Assessment will be based on a sample of the working environment as identified at the time of the Assessors visit. It is possible that this sample may not be entirely representative of all aspects of the working environment.

Whilst the Assessor will use best endeavours to identify those matters which are considered unacceptable to current fire safety regulations and which have been observed during the inspection, KSS NW Ltd cannot be held responsible for non-compliance with relevant statutes, regulations and standards or systems of work or for failing to observe industry fire and safety working practices whether such non-compliance or failure is by the Customer, it's servants, agents, contractors or sub-contractors.

The Assessor should be notified of any visit or intended visit to be made to the premises by an Enforcement Authority or Insurance assessor prior to carrying out the assessment. The Assessment will be based on a visual inspection of the working environment, no testing of the luminance levels or sounders, of the design or the HVAC system will be carried out.

If requirements or recommendations are made by an Enforcement Authority, Insurance Risk Assessor or KSS NW Ltd, it is recommended that Customer carry out these requirements or recommendations as soon as is reasonably practicable. Notification of completion of relevant parts should be made to KSS NW Ltd in writing.

The Assessor must be immediately notified at the time of the visit of any recommendation or requirements made by the Enforcement Authority or Insurance Risk Assessor. It is the Customer's responsibility to comply with such recommendations or requirements.

When hazards are identified which in the opinion of the Assessor requires the advice of a particular specialist, KSS NW Ltd will notify the Customer accordingly and will indicate where in its opinion such advice and service may be obtained. It shall be the Customer's decision whether or not to use the particular specialist. The cost of such specialist advice shall at all times remain the responsibility of the Customer.

KSS NW Ltd limits its liability for any loss, damage or injury (or consequential or indirect loss) arising from the performance of, or failure by, KSS NW Ltd to perform any of its duties (whether or not such loss damage or injury or consequential or indirect loss be due to the negligence of KSS NW Ltd, its servants or agents or to any other cause whatsoever) to that determined by our Insurance Policy.

